

1 AN ACT relating to the Kentucky Fire Commission.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 95A.020 is amended to read as follows:

4 (1) As used in this section, "chief fire officer" means an individual who plays an
5 essential role in the administrative structure of his or her fire department.

6 (2) There is hereby created the Kentucky Fire Commission, hereinafter called
7 "commission," which shall be attached to the Kentucky Community and Technical
8 College System for administrative purposes only.

9 (3) (a) The commission shall include male, female, and racial minority
10 representation.

11 (b) No more than three (3) appointed members shall reside in the same
12 congressional district.

13 (4) The commission shall be composed of **eighteen (18)**~~fourteen (14)~~ members **who**
14 **are**~~are~~ residents of the State of Kentucky~~and~~ and appointed by the Governor, **as**
15 **applicable**. These members should be persons well qualified by experience or
16 education in the field of fire protection or related fields.

17 (5) The membership of the commission shall include:

18 (a) One (1) member of a fire department formed under KRS Chapter 75 or 273
19 who is:

- 20 1. Not a chief fire officer;
- 21 2. Not a career employee of any department other than the one from which
22 he or she is nominated; and
- 23 3. Selected from a list of at least three (3) names submitted by the
24 Kentucky Firefighters Association;

25 (b) One (1) member of a volunteer fire department who is:

- 26 1. Not a chief fire officer;
- 27 2. Not a career employee of any fire department other than the one from

- 1 which he or she is nominated; and
- 2 3. Selected from a list of at least three (3) names submitted by the
- 3 Kentucky Firefighters Association;
- 4 (c) One (1) member of a fire department formed under KRS Chapter 95 selected
- 5 from a list of at ~~least~~~~[list]~~ three (3) names submitted by the Kentucky
- 6 Professional Firefighters;
- 7 (d) One (1) chief fire officer of a paid fire department selected from a list of at
- 8 least three (3) names submitted by the Kentucky Association of Fire Chiefs;
- 9 (e) One (1) licensed physician with experience in emergency medicine;
- 10 (f) A chief fire officer of a volunteer fire department who is not a career member
- 11 of any other department, selected from a list of at least three (3) names
- 12 submitted by the Kentucky Association of Fire Chiefs;
- 13 (g) One (1) member of a fire department formed under KRS Chapter 67 or 75, or
- 14 a fire department in a county containing an urban-county government created
- 15 pursuant to KRS Chapter 67A, who is selected from a list of at least three (3)
- 16 names submitted by the Kentucky Professional Firefighters;
- 17 (h) The director of Homeland Security or his or her designee;
- 18 (i) One (1) mayor or other officer of a Kentucky city providing fire services
- 19 under KRS Chapter 95 selected from a list of at least three (3) names
- 20 submitted by the Kentucky League of Cities;
- 21 (j) One (1) county judge/executive or other officer of a Kentucky county selected
- 22 from a list of at least three (3) names submitted by the Kentucky Association
- 23 of Counties;
- 24 (k) One (1) representative of a Kentucky building, industry, or safety association;
- 25 (l) One (1) representative of the general public who is not an employee of any
- 26 government or governmental agency;
- 27 (m) The state fire marshal or his or her designee;~~[and]~~

1 (n) One (1) officer of a fire-based emergency medical service selected from a list
2 of at least three (3) names submitted by the executive director of the Kentucky
3 Board of Emergency Medical Services;

4 (o) The president of the Kentucky Community and Technical College System or
5 his or her designee;

6 (p) The president of the Kentucky Firefighters Association or his or her
7 designee;

8 (q) The president of the Kentucky Professional Firefighters or his or her
9 designee; and

10 (r) The president of the Kentucky Association of Fire Chiefs or his or her
11 designee.

12 (6) ~~{The vice president of administrative services of the Kentucky Community and~~
13 ~~Technical College System, president of the Kentucky Firefighters Association,~~
14 ~~president of the Kentucky Professional Firefighters, and president of the Kentucky~~
15 ~~Association of Fire Chiefs, or their designees, shall serve as nonvoting ex officio~~
16 ~~members of the commission.~~

17 ~~(7)~~ The members of the commission who are firefighters shall possess a minimum of
18 five (5) years of fire service experience and shall be certified with the following:

19 (a) One hundred fifty (150) hours of training for volunteer firefighters; or

20 (b) Four hundred (400) hours of training for professional firefighters.

21 ~~(7)~~ ~~(8)~~ The Kentucky Firefighters Association, Kentucky Professional Firefighters,
22 Kentucky Association of Fire Chiefs, Kentucky Board of Emergency Medical
23 Services Association, Kentucky League of Cities, and Kentucky Association of
24 Counties shall submit their lists of nominees by November 15 of each year as
25 vacancies occur. {

26 ~~(9)~~ The Governor shall appoint members of the commission to staggered terms not to
27 exceed four (4) years. However, initial appointments shall be appointed as follows:

1 ~~(a) Four (4) members shall serve for two (2) year terms ending November 30,~~
2 ~~2021;~~

3 ~~(b) Five (5) members shall serve three (3) year terms ending November 30, 2022;~~
4 ~~and~~

5 ~~(c) Five (5) members shall serve four (4) year terms ending November 30, 2023.]~~

6 **(8) (a)**~~[(10)]~~ After the expiration of the initial appointments,]Appointive members
7 shall be appointed **by the Governor under subsection (5)(a) to (q), (i) to (l),**
8 **and (n) of this section** for a term of four (4) years.

9 **(b) The terms of the members set out in subsection (5)(h), (m), and (o) to (r) of**
10 **this section shall be concurrent with and by virtue of his or her office.**

11 **(c)** Any member chosen by the Governor to fill a vacancy created otherwise than
12 by expiration of term shall be appointed for the unexpired term of the member
13 he or she is chosen to succeed.

14 **(9)**~~[(11)]~~ When vacancies occur other than by expiration of term and nominations are
15 required, the Governor may request a new list or select an appointee from a
16 previously submitted list. Appointive members shall not serve more than two (2)
17 consecutive four (4) year terms.

18 **(10)**~~[(12)]~~ A majority of the voting members appointed to the commission shall
19 constitute a quorum. The commission shall:

20 (a) Meet at least four (4) times per year upon call of the chair, or upon the written
21 request of any five (5) members; and

22 (b) Annually elect a chair, vice chair, and secretary in accordance with KRS
23 95A.030.

24 **(11)**~~[(13)]~~ A member of the commission who misses three (3) regular meetings, without
25 the approval of the chairman, in one (1) year shall be deemed to have resigned from
26 the commission and his or her position shall be deemed to be vacant. As used in this
27 subsection, a "year" begins when the first meeting is missed and ends three hundred

1 sixty-five (365) days later or when the third meeting is missed, whichever occurs
2 first. The Governor shall appoint a similarly qualified person to fill the vacancy
3 within ninety (90) days of the vacancy occurring. The failure of a commission
4 member to attend a special or emergency meeting shall not result in any penalty. A
5 person removed under this subsection shall not be reappointed to the commission
6 for at least ten (10) years after removal.

7 ~~(12)~~~~(14)~~ Members of the commission shall receive no compensation for their services
8 but shall be allowed their actual and necessary expenses incurred in the
9 performance of their functions.

10 ➔ Section 2. KRS 95A.262 is amended to read as follows:

11 (1) (a) The Kentucky Fire Commission shall, in cooperation with the Cabinet for
12 Health and Family Services, develop and implement a continuing program to
13 inoculate every paid and volunteer firefighter in Kentucky against hepatitis A
14 and B.

15 (b) The program shall be funded from revenues allocated to the Firefighters
16 Foundation Program fund pursuant to KRS 136.392 and 42.190, not to exceed
17 five hundred thousand dollars (\$500,000) per fiscal year.

18 (c) Program funds in excess of the costs of inoculating firefighters under
19 paragraph (a) of this subsection may be used to reimburse firefighters for
20 out-of-pocket expenses for cancer screenings under subsection (16)(h) of
21 this section.

22 (2) (a) Except as provided in subsection (3) of this section, the Kentucky Fire
23 Commission shall allot on an annual basis a share of the funds accruing to and
24 appropriated for volunteer fire department aid to volunteer fire departments in
25 cities of all classes, fire protection districts organized pursuant to KRS
26 Chapter 75, county districts established under authority of KRS 67.083, and
27 volunteer fire departments created as nonprofit corporations pursuant to KRS

1 Chapter 273.

2 (b) The commission shall allot eleven thousand dollars (\$11,000) annually to
3 each qualifying department.

4 (c) Any qualifying department which fails to participate satisfactorily in the
5 Kentucky fire incident reporting system as described in KRS 304.13-380 shall
6 forfeit annually five hundred dollars (\$500) of its allotment.

7 (d) If two (2) or more qualified volunteer fire departments, as defined in KRS
8 95A.500 to 95A.560, merge after January 1, 2000, then the allotment shall be
9 in accordance with the provisions of KRS 95A.500 to 95A.560.

10 (e) Administrative regulations for determining qualifications shall be based on
11 the number of both paid firefighters and volunteer firemen within a volunteer
12 fire department, the amount of equipment, housing facilities available, and
13 any other matters or standards that will best effect the purposes of the
14 volunteer fire department aid law. A qualifying department shall:

- 15 1. Include at least twelve (12) firefighters;
- 16 2. Have a chief;
- 17 3. Have at least one (1) operational fire apparatus or one (1) on order; and
- 18 4. Have at least fifty percent (50%) of its firefighters who have completed
19 at least one-half (1/2) of one hundred fifty (150) training hours, or as
20 otherwise established by the commission under KRS 95A.240(6),
21 toward certification within the first six (6) months of the first year of the
22 department's application for certification, and there shall be a plan to
23 complete the one hundred fifty (150) training hours, or as otherwise
24 established by the commission by KRS 95A.240(6), within the second
25 year.

26 These personnel, equipment, and training requirements shall not be made
27 more stringent by the promulgation of administrative regulations.

- 1 (f) No allotment shall exceed the total value of the funds, equipment, lands, and
2 buildings made available to the local fire units from any source whatever for
3 the year in which the allotment is made.
- 4 (g) A portion of the funds provided for above may be used to purchase group or
5 blanket health insurance and shall be used to purchase workers' compensation
6 insurance, and the remaining funds shall be distributed as provided in this
7 section.
- 8 (3) There shall be allotted two hundred thousand dollars (\$200,000) of the insurance
9 premium surcharge proceeds accruing to the Firefighters Foundation Program fund
10 that shall be allocated each fiscal year of the biennium to the firefighters training
11 center fund, which is hereby created and established, for the purposes of
12 constructing new or upgrading existing training centers for firefighters. If any
13 moneys in the training center fund remain uncommitted, unobligated, or
14 unexpended at the close of the first fiscal year of the biennium, then such moneys
15 shall be carried forward to the second fiscal year of the biennium, and shall be
16 reallocated to and for the use of the training center fund, in addition to the second
17 fiscal year's allocation of two hundred thousand dollars (\$200,000). Prior to funding
18 any project pursuant to this subsection, a proposed project shall be approved by the
19 Kentucky Fire Commission as provided in subsection (4) of this section and shall
20 comply with state laws applicable to capital construction projects.
- 21 (4) Applications for funding low-interest loans and firefighters' training centers shall be
22 submitted to the Kentucky Fire Commission for their recommendation, approval,
23 disapproval, or modification. The commission shall review applications
24 periodically, and shall, subject to funds available, recommend which applications
25 shall be funded and at what levels, together with any terms and conditions the
26 commission deems necessary.
- 27 (5) Any department or entity eligible for and receiving funding pursuant to this section

1 shall have a minimum of fifty percent (50%) of its personnel certified as recognized
2 by the Kentucky Fire Commission.

3 (6) Upon the written request of any department, the Kentucky Fire Commission shall
4 make available a certified training program in a county of which such department is
5 located.

6 (7) *The commission shall reimburse the Kentucky Community and Technical College*
7 *System for salaries and other costs of administering funds as set out in this*
8 *section, and the reimbursement shall be considered a part of the reimbursement*
9 *described in KRS 95A.240(3). The reimbursement set out in this subsection and*
10 *all other reimbursements associated with administering the fund shall not*
11 *collectively exceed five percent (5%) of the total appropriation to the fund for that*
12 *year as set out in KRS 95A.240(3).*~~[The amount of reimbursement for any given~~
13 ~~year for costs incurred by the Kentucky Community and Technical College System~~
14 ~~for administering these funds, including but not limited to the expenses and costs of~~
15 ~~commission operations, shall be determined by the commission and shall not~~
16 ~~exceed five percent (5%) of the total amount of moneys accruing to the Firefighters~~
17 ~~Foundation Program fund which are allotted for the purposes specified in this~~
18 ~~section during any fiscal year].~~

19 (8) The commission shall withhold from the general distribution of funds under
20 subsection (2) of this section an amount which it deems sufficient to reimburse
21 volunteer fire departments for equipment lost or damaged beyond repair due to
22 hazardous material incidents.

23 (9) Moneys withheld pursuant to subsection (8) of this section shall be distributed only
24 under the following terms and conditions:

25 (a) A volunteer fire department has lost or damaged beyond repair items of
26 personal protective clothing or equipment due to that equipment having been
27 lost or damaged as a result of an incident in which a hazardous material (as

1 defined in any state or federal statute or regulation) was the causative agent of
2 the loss;

3 (b) The volunteer fire department has made application in writing to the
4 commission for reimbursement in a manner approved by the commission and
5 the loss and the circumstances thereof have been verified by the commission;

6 (c) The loss of or damage to the equipment has not been reimbursed by the
7 person responsible for the hazardous materials incident or by any other
8 person;

9 (d) The commission has determined that the volunteer fire department does not
10 have the fiscal resources to replace the equipment;

11 (e) The commission has determined that the equipment sought to be replaced is
12 immediately necessary to protect the lives of the volunteer firefighters of the
13 fire department;

14 (f) The fire department has agreed in writing to subrogate all claims for and
15 rights to reimbursement for the lost or damaged equipment to the
16 Commonwealth to the extent that the Commonwealth provides reimbursement
17 to the department; and

18 (g) The department has shown to the satisfaction of the commission that it has
19 made reasonable attempts to secure reimbursement for its losses from the
20 person responsible for the hazardous materials incident and has been
21 unsuccessful in the effort.

22 (10) If a volunteer fire department has met all of the requirements of subsection (9) of
23 this section, the commission may authorize a reimbursement of equipment losses
24 not exceeding ten thousand dollars (\$10,000) or the actual amount of the loss,
25 whichever is less.

26 (11) Moneys which have been withheld during any fiscal year which remain unexpended
27 at the end of the fiscal year shall be distributed in the normal manner required by

1 subsection (2) of this section during the following fiscal year.

2 (12) No volunteer fire department may receive funding for equipment losses more than
3 once during any fiscal year.

4 (13) The commission shall make reasonable efforts to secure reimbursement from the
5 responsible party for any moneys awarded to a fire department pursuant to this
6 section.

7 (14) The commission, in accordance with the procedures in subsection (4) of this
8 section, may make low-interest loans, and the interest thereon shall not exceed three
9 percent (3%) annually or the amount needed to sustain operating expenses of the
10 loan fund, whichever is less, to volunteer fire departments for the purposes of major
11 equipment purchases and facility construction. Loans shall be made to departments
12 which achieve the training standards necessary to qualify for volunteer fire
13 department aid allotted pursuant to subsection (2) of this section, and which do not
14 have other sources of funds at rates which are favorable given their financial
15 resources. The proceeds of loan payments shall be returned to the loan fund for the
16 purpose of providing future loans. If a department does not make scheduled loan
17 payments, the commission may withhold any grants payable to the department
18 pursuant to subsection (2) of this section until the department is current on its
19 payments. Money in the low-interest loan fund shall be used only for the purposes
20 specified in this subsection. Any funds remaining in the fund at the end of a fiscal
21 year shall be carried forward to the next fiscal year for the purposes of the fund.

22 (15) Each fiscal year there shall be allotted one million dollars (\$1,000,000) from the
23 fund established in KRS 95A.220 to be used by the commission to conduct training-
24 related activities.

25 (16) If funding is available from the fund established in KRS 95A.220, the Kentucky
26 Fire Commission may implement the following:

27 (a) A program to prepare emergency service personnel for handling potential

- 1 man-made and non-man-made threats. The commission shall work in
2 conjunction with the state fire marshal and other appropriate agencies and
3 associations to identify and make maps of gas transmission and hazardous
4 liquids pipelines in the state;
- 5 (b) A program to provide and maintain a mobile test facility in each training
6 region established by the Kentucky Fire Commission with equipment to
7 administer Comprehensive Physical Aptitude Tests (CPAT) to ascertain a
8 firefighter's ability to perform the physical requirements necessary to be an
9 effective and safe firefighter;
- 10 (c) A program to provide defensive driving training tactics to firefighters. The
11 commission shall purchase, instruct in the use of, and maintain mobile
12 equipment in each of the training regions, and fund expenses related to
13 equipment replacement;
- 14 (d) A program to annually evaluate equipment adequacy and to provide for
15 annual physical examinations for instructors, adequate protective clothing and
16 personal equipment to meet NFPA guidelines, and to establish procedures for
17 replacing this equipment as needed;
- 18 (e) A program to establish a rotational expansion and replacement program for
19 mobile fleet equipment currently used for training and recertification of fire
20 departments;
- 21 (f) A program to expand and update current emergency medical services,
22 emergency medical responder, emergency medical technician, advanced
23 emergency medical technician, and paramedic training and certification
24 instruction;
- 25 (g) A program to purchase thermal vision and other technical devices to comply
26 with the provisions of KRS 95A.400 to 95A.440; and
- 27 (h) A program to reimburse firefighters for out-of-pocket expenses for cancer

1 screenings in accordance with subsection (1) of this section. The commission
2 may promulgate administrative regulations pursuant to KRS Chapter 13A to:

- 3 1. Establish a periodic cap and maximum on the reimbursement to the
4 firefighter seeking reimbursement;
- 5 2. Establish which cancer screening tests are eligible for reimbursement,
6 provided that only cancer screening tests approved by the United States
7 Food and Drug Administration for cancer detection in humans may be
8 reimbursed;
- 9 3. Determine eligibility requirements for participants, which in the
10 discretion of the commission may also include retired firefighters; and
- 11 4. Establish any other policy to effect the purposes of this program.

12 ➔Section 3. KRS 95A.400 is amended to read as follows:

13 The Thermal Vision and Technical Innovation Grant Program, which is administered
14 pursuant to KRS 95A.400 to 95A.440 and appropriations for the Thermal Vision and
15 Technical Innovation Grant Program in the state budget, is designed to:

- 16 (1) Reduce and prevent the loss of life by creating better equipped firefighters
17 throughout the Commonwealth; and
- 18 (2) Upgrade the capabilities of local firefighters by providing financial assistance to be
19 used to purchase thermal vision and other technical devices.

20 ➔Section 4. KRS 95A.410 is amended to read as follows:

21 The commission shall have overall responsibility for policy, guidance, administration,
22 implementation, and proper utilization of the Thermal Vision and Technical Innovation
23 Grant Program. The commission, with the advice of the grant~~[advisory]~~ committee, shall
24 make determinations relating to Thermal Vision and Technical Innovation Grant
25 Program applications and releasing equipment to fire departments.

26 ➔Section 5. KRS 95A.420 is amended to read as follows:

27 As used in~~[For the purposes of]~~ KRS 95A.400 to 95A.440:~~[,]~~

1 (a) "Automated external defibrillator" has the same meaning as in KRS
2 311.666;

3 (b) "Gas monitor" means a portable device that detects and measures the
4 concentration of one (1) or more gases, and includes four (4) gas monitors
5 and multi-gas monitors;

6 (c) "Technical device" means an:

7 1. Automated external defibrillator;

8 2. Gas monitor; or

9 3. Thermal vision device; and

10 (d) "Thermal vision device" means any portable electronic device that displays a
11 visible image from the infrared portion of the electromagnetic spectrum.

12 ➔Section 6. KRS 95A.430 is amended to read as follows:

13 The commission shall:

14 (1) Create the necessary application forms, any necessary supporting documents,
15 compliance documents, or reporting documents for the Thermal Vision and
16 Technical Innovation Grant Program as may be necessary by promulgating
17 administrative regulations in accordance with~~under~~ KRS Chapter 13A;

18 (2) Make a determination of the characteristics of the most cost-effective technical
19 devices~~[thermal vision systems]~~ for use by fire departments participating in the
20 Thermal Vision and Technical Innovation Grant Program;

21 (3) Make a determination of the manufacturer or manufacturers of technical~~[thermal~~
22 ~~vision]~~ devices to be purchased by the Thermal Vision and Technical Innovation
23 Grant Program;

24 (4) Make a determination of the most cost-effective purchase mechanism and price,
25 under KRS Chapter 45A, for technical devices~~[thermal vision systems]~~;

26 (5) Accept and process applications for the purchase of technical devices~~[thermal~~
27 ~~vision systems]~~ through the Thermal Vision and Technical Innovation Grant

1 Program;

2 (6) Award eligible fire departments grants equal to fifty percent (50%), but not to
3 exceed the sum of five thousand dollars (\$5,000), of the agreed price for the
4 purchase of **technical devices**~~[thermal-vision systems]~~;

5 (7) Require recipients of **technical**~~[thermal-vision]~~ devices purchased through the
6 Thermal Vision **and Technical Innovation** Grant Program to file any reports
7 deemed necessary by the commission concerning usage, maintenance, or property
8 accounting or loss with the commission; and

9 (8) Maintain these reports for evaluation by the commission.

10 ➔Section 7. KRS 95A.440 is amended to read as follows:

11 **(1)** All fire departments formed under KRS Chapter 65, 75, 95, or 273 shall be eligible
12 to receive grants through the Thermal Vision **and Technical Innovation** Grant
13 Program. These fire departments may make application for a grant to purchase
14 **technical**~~[thermal-vision]~~ devices through the Thermal Vision **and Technical**
15 **Innovation** Grant Program to the commission. The application shall be made on
16 forms provided by the commission.

17 **(2)** A fire department that receives a grant through the Thermal Vision **and Technical**
18 **Innovation** Grant Program shall not make another application to the commission
19 for a grant for a period of two (2) years.

20 **(3)** Fire departments receiving grants for the purchase of **technical**~~[thermal-vision]~~
21 devices through the Thermal Vision **and Technical Innovation** Grant Program shall
22 comply with all administrative regulations concerning reporting requirements
23 established by the commission. Failure to comply with these reporting requirements
24 shall disqualify a fire department from participation in the Thermal Vision **and**
25 **Technical Innovation** Grant Program for a period of five (5) years.

26 ➔Section 8. KRS 95A.055 is amended to read as follows:

27 (1) As used in this section:

1 (a) "Fire district" means any fire protection district or volunteer fire department
2 district operating under KRS Chapter 75 with the higher of annual receipts
3 from all sources or annual expenditures of less than one hundred thousand
4 dollars (\$100,000); and

5 (b) "Nonprofit fire department" means any fire department incorporated under
6 KRS Chapter 273.

7 (2) If a fire district's annual revenues or expenditures equals or exceeds one hundred
8 thousand dollars (\$100,000) for two (2) consecutive fiscal years, then the fire
9 district shall, for the next reporting period and any subsequent reporting period for
10 which it exceeds that amount, be considered a special purpose governmental entity
11 as defined in KRS 65A.010 and shall comply with KRS Chapter 65A until its
12 annual revenues or expenditures are less than one hundred thousand dollars
13 (\$100,000), whereupon it may again qualify as a fire department under this section.

14 (3) Each fire district shall for each fiscal year beginning on and after July 1, 2016,
15 annually submit to the commission the information required by this section. The
16 information shall be submitted at the time and in the form and format required by
17 the commission. The information submitted shall include at a minimum the
18 following:

19 (a) Administrative information:

- 20 1. The name, address, and, if applicable, the term and appointing authority
21 for each board member of the governing body of the fire district;
- 22 2. The fiscal year of the fire district;
- 23 3. The Kentucky Revised Statute and, if applicable, the local government
24 ordinance under which the fire district was established; the date of
25 establishment; the establishing entity; and the statute or statutes, local
26 government ordinance, or interlocal agreement under which the fire
27 district operates, if different from the statute or statutes, ordinance, or

- 1 agreement under which it was established;
- 2 4. The mailing address and telephone number and, if applicable, the Web
- 3 site uniform resource locator (URL) of the fire district;
- 4 5. The operational boundaries and service area of the fire district and the
- 5 services provided by the fire district;
- 6 6. A listing of the taxes or fees imposed and collected by the fire district,
- 7 including the rates or amounts charged for the reporting period and the
- 8 statutory or other source of authority for the levy of the tax or fee;
- 9 7. The primary contact for the fire district for purposes of communication
- 10 with the commission;
- 11 8. The code of ethics that applies to the fire district, and whether the fire
- 12 district has adopted additional ethics provisions;
- 13 9. A listing of all federal, state, and local governmental entities that have
- 14 oversight authority over the fire district or to which the fire district
- 15 submits reports, data, or information; and
- 16 10. Any other related administrative information required by the
- 17 commission; and
- 18 (b) Financial information including budgets and financial expenditure
- 19 information that are designed to ensure that all public funds received by the
- 20 fire districts are being responsibly used. The commission shall, through the
- 21 promulgation of an administrative regulation, establish the specific financial
- 22 information that shall be filed to meet the requirements of this paragraph.
- 23 (4) The commission shall review the reports required for fire districts by this section
- 24 and, if the commission finds that a report submitted does not comply with the
- 25 requirements established by this section and regulations promulgated hereunder, the
- 26 commission shall notify the fire district in writing. The notification shall include a
- 27 description of the specific deficiencies identified, and shall describe the process the

1 fire district shall follow to correct the deficiencies, including the time within which
2 a response must be provided.

3 (5) The commission shall ensure that every fire district or nonprofit fire department
4 shall at least once every twelve (12) months be subject to a financial review that
5 shall include procedures developed by the commission and approved by the Auditor
6 of Public Accounts in advance. Subsequent changes to these procedures shall also
7 be approved by the Auditor of Public Accounts prior to the period in which they are
8 performed.

9 (6) The commission may require any fire district or nonprofit fire department with the
10 higher of annual receipts from all sources or annual expenditures equal to or greater
11 than one hundred thousand dollars (\$100,000) but less than five hundred thousand
12 dollars (\$500,000) to once every four (4) years be subject to an independent audit in
13 the manner specified in KRS 65A.030(2).

14 (7) The commission shall ensure that every fire district or nonprofit fire department
15 with the higher of annual receipts from all sources or annual expenditures equal to
16 or greater than five hundred thousand dollars (\$500,000) for two (2) consecutive
17 fiscal years is audited annually in the manner specified in KRS 65A.030(2) until its
18 annual revenues or expenditures are less than five hundred thousand dollars
19 (\$500,000).

20 (8) The Auditor of Public Accounts may, upon request, examine and review the reports
21 and all related work papers and documents relating to a financial review or audit
22 under this section.

23 (9) If a fire district or nonprofit fire department fails to comply with this section or
24 KRS 75.430, then the commission may withhold:

25 (a) Incentive pay to qualified firefighters under KRS 95A.250;

26 (b) Volunteer fire department aid, funds used to purchase workers' compensation
27 insurance for fire districts and nonprofit fire departments, and the low-interest

- 1 loans under KRS 95A.262;
- 2 (c) Funds from the Thermal Vision and Technical Innovation Grant Program
- 3 under KRS 95A.400 to 95A.440; and
- 4 (d) Any other funds that the commission controls.
- 5 (10) The commission shall report any irregularities relating to the finances or operations
- 6 of a fire district or nonprofit fire department that it identifies to the Attorney
- 7 General and Auditor of Public Accounts, and the commission may notify any other
- 8 public official with jurisdiction over fire districts or nonprofit fire departments for
- 9 further investigation and follow-up.
- 10 (11) The commission may prescribe corrective actions to bring fire districts or nonprofit
- 11 fire departments that are, as of July 15, 2016, not in compliance with KRS Chapter
- 12 65A into compliance with this section. Any sanctions imposed by the Department
- 13 for Local Government prior to July 15, 2016, shall be lifted upon notification by the
- 14 commission to the department that the fire district or nonprofit fire department in
- 15 question has complied with the corrective actions prescribed by the commission.
- 16 (12) The information reported by fire districts or nonprofit fire departments under this
- 17 section shall be considered public records under KRS 61.872 to 61.884. The
- 18 commission shall prominently post on its Web site the availability of the
- 19 information required by this section and shall provide contact information and
- 20 procedures for obtaining copies of the information.
- 21 (13) The commission shall promulgate administrative regulations in accordance
- 22 with~~under~~ KRS Chapter 13A as soon as practicable after July 15, 2016, to
- 23 implement this section and KRS 75.430.
- 24 (14) By October 1, 2016, and on or before each October 1 thereafter, the commission
- 25 shall file an annual report with the Legislative Research Commission detailing the
- 26 compliance of the fire districts or nonprofit fire departments required to report
- 27 under this section with subsection (3) of this section. The Legislative Research

- 1 Commission shall refer the report to the Interim Joint Committee on Local
- 2 Government for review.